

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
KARIM RICHARDSON,

Plaintiff,

- against -

THE CITY OF NEW YORK, THE POLICE
DEPARTMENT OF THE CITY OF NEW YORK,
P.O. DAVID THOMPSON, SHIELD NO: 19571,
AND OTHER P.O.'s HEREIN NAMED JOHN DOES',Defendants.
-----XPlaintiff reside at
495 Fountain Avenue
Apt. 6F
Brooklyn, NY 11208**Index No.:**Plaintiff designates
Kings County
as the place of trial
The basis of venue is
Place of occurrence**SUMMONS WITH NOTICE**

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
June 5, 2018**Defendants Address:****THE CITY OF NEW YORK**
100 Church Street
New York, New York 10007**THE POLICE DEPARTMENT OF THE CITY OF NEW YORK**
1 Police Plaza
New York, New York 10007**P.O. DAVID THOMPSON, Shield #19571**
NYPD HOUSING BUREAU
Police Service Area #2
560 Sutter Avenue (Alabama Avenue)
Brooklyn, New York 11207

Notice: The nature of this action is Negligence

The relief sought is personal injuries

HARNICK & HARNICK, P.C.
Attorneys for Plaintiff
305 Broadway, Suite 602
New York, New York 10007

Upon your failure to appear, judgment will be taken against you by default for the sum which exceeds the jurisdictional limits with interest from June 5, 2018 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KARIM RICHARDSON,

Index No:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE POLICE DEPARTMENT
OF THE CITY OF NEW YORK, P.O. DAVID THOMPSON,
SHIELD NO: 19571, AND OTHER P.O'S HEREIN NAMED
JOHN DOES,

Defendants.
-----X

Plaintiff, KARIM RICHARDSON, complaining of the defendants, by HARNICK

& HARNICK, PC, his attorneys, alleges upon information and belief:

**FOR A FIRST SEPARATE AND DISTINCT CAUSE OF ACTION ON
BEHALF OF PLAINTIFF, KARIM RICHARDSON FOR FALSE
IMPRISONMENT**

FIRST: That at all the times mentioned herein, the defendant, The City of New York (hereinafter-referred to as "The City"), was and still is a domestic municipal corporation.

SECOND: That at all the times mentioned herein, the defendant, The Police Department of The City of New York, (hereinafter referred to as "The Police Department"), was and still is a domestic municipal corporation.

THIRD: That at all times mentioned herein, the defendant, The City owned, operated, maintained, and controlled the defendant, The Police Department.

FOURTH: That on September 29th 2017, plaintiff duly filed with defendant, the City of New York a verified notice of claim setting forth the time and place where the accident, which is the subject of this lawsuit, occurred, the nature and extent of the injuries, the damages sustained and the amount claimed.

FIFTH: That prior to the commencement of this action, on or about the 29th day of September 2017 and within ninety days after plaintiff's cause of action arose, plaintiff caused to be served upon the defendants by its duly authorized officer, a verified Notice of Claim containing all of the data required by the statute in such cases made and provided.

SIXTH: More than thirty (30) days have elapsed since the presentation of said claim, and the defendant, The City of New York, has failed to adjust and/or dispose of the claim presented therein.

SEVENTH: That on January 18th 2018 a 50-H hearing was held.

EIGHTH: That this cause of action is commenced within one year and ninety days after same arose.

NINTH: That on or about July 5th 2017 the defendants, The City and The Police Department as well as their agents servants and or employees including but not limited to defendants, P.O. David Thompson Shield No: 19571 (hereinafter "P.O. Thompson") and other P.O.s Herein named John Does individually, and severally, acting within their scope of employment maliciously, wrongfully, unlawfully, improperly, and without probable cause and without any basis in law or fact, falsely swore a criminal complaint against the plaintiff, KARIM RICHARDSON in order to effect the false forcible, and unlawful arrest and imprisonment of said plaintiff.

TENTH: That on or about 7/5/17 , the defendants, P.O. Thompson , and OTHER P.O.'S HEREIN NAMED JOHN DOES individually and severally and/or other agents servants and/ or employees of the defendants, The City and The Police Department wrongfully, unlawfully and without warrant or other legal

process arrested the plaintiff, KARIM RICHARDSON against his will at the situs of the arrest, while waiting in an NYPD Van for an Ambulance, at Brookdale Hospital, while at PSA-2 and at Central Booking in the County of Kings, City and State of New York.

ELEVENTH: That on or about the 5th of July 2017, the plaintiff, KARIM RICHARDSON was forcibly restrained, imprisoned and detained by the defendants, The City, and The Police Department, as well as their agents, servants and or employees including but not limited to the defendants, P.O. THOMPSON and OTHER P.O.S NAMED JOHN DOES was subjected to being Tasered, physically assaulted, forcibly restrained, held in various holding cells for multiple hours, held in various police vehicles marked and unmarked, and was in handcuffs at various times without having his Miranda rights read to him or informed of what he was being charged with, and was unlawfully charged with the crimes of **PL 120.00 01, 120.15, 240.26. 00, and 205.30.00**

TWELFTH: That on the 5th of July 2017 the plaintiff, KARIM RICHARDSON as a result of the wanton reckless and malicious actions of the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson, and Other P.O.s herein named JOHN DOES the plaintiff, was then caused to be tasered despite having his right arm behind his back and in a handcuff, as well as being forcibly and physically restrained after having been tasered and on the ground, then taken in handcuffs to Brookdale Hospital where he was handcuffed to gurney until discharged, and then subsequently brought to the PSA-2 where

he was printed, had his mug shot taken and then placed in a holding cell where he remained for approximately 5 hours then taken in handcuffs to Central Booking in Kings County where again his mug shot and prints were taken. He was then placed in a holding cell and early the next morning taken to Criminal Court at which time he was arraigned before a Criminal Court Judge in Brooklyn was informed of the above said charges and then released shortly thereafter.

THIRTEENTH: That after her arraignment the plaintiff was caused to return to Criminal Court approximately 1 more time and on October 5th 2017 in Part DV2 of the Criminal Court of The City of New York Kings County the above said charges were dismissed and as such the plaintiff was caused due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to PO Thompson, and Other P.O.s herein named John Does to live in fear and with mental anguish of a potentially long jail sentence for approximately 4 months until the above said charges were dismissed

FOURTEENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants P.O. Thompson and Other P.O.s herein named John Does on or about the 5th of July 2017 amounted to wanton, reckless outrageous conduct.

FIFTEENTH: That by reason of the foregoing occurrence, the plaintiff, KARIM RICHARSON was caused to sustain serious, severe and permanent injuries; was greatly humiliated and suffered great mental distress; was

compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A SECOND SEPARATE AND DISTINCT CAUSE OF ACTION
FOR FALSE ARREST ON BEHALF OF PLAINTIFF, KARIM RICHARDSON**

SIXTEENTH: The plaintiff, KARIM RICHARDSON, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**FIFTEENTH**" inclusive, with the same force and effect as if fully and at length herein set forth.

SEVENTEENTH: That on or about July 5th 2017, the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson Other P.O.s herein named John Does were working within the scope of their employment, when without cause or provocation, they falsely arrested the plaintiff, KARIM RICHARDSON

EIGHTEENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson, and Other P.O.s herein named John Does on July 5th 2017, amounted to wanton, reckless outrageous conduct.

NINETEENTH: That the injuries sustained by the plaintiff herein were caused,

due to the actions of the defendants, The City, and The Police Department as well as their agents, servants and/or employees including but not limited to defendants, P.O. Thompson, and other P.O.s herein named John Does with no actions on his part contributing in any way thereto.

TWENTIETH: That at the time of the false arrest the defendants, The City, and The Police Department as well as their agents, servants and/or employees including but not limited to defendants, P.O. Thompson and Other P.O.s Herein named John Does were acting within the scope of their employment.

TWENTY-FIRST: That by reason of the foregoing occurrence, the plaintiff, KARIM RICHARDSON, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and his sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A THIRD AND SEPARATE AND DISTINCT CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF
PLAINTIFF KARIM RICHARDSON**

TWENTY-SECOND: That the plaintiff, KARIM RICHARDSON reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**"

through“ **TWENTY-FIRST**” inclusive, with the same force and effect as if fully and at length herein set forth

TWENTY-THIRD: That on or about the 5TH of July 2017, the defendants, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, P.O. Thompson, and Other P.O.s herein named John Does while in the scope of their employment did willfully and intentionally, inflict extreme emotional distress on the plaintiff, KARIM RICHARDSON at the situs of the arrest, while waiting in an NYPD Van for an Ambulance, at Brookdale Hospital, while at PSA-2 as well as at Central Booking in the County of Kings, City and State of New York, and without any provocation on the part of said plaintiff.

TWENTY-FOURTH: That due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson, and Other P.O.s herein named John Does on or about the 5th of July 2017 the plaintiff was intentionally subjected to extreme emotional distress from defendant, P.O. Thompson, and Other P.O.s herein Named John Does at the situs of the arrest, while waiting in an NYPD Van for an Ambulance, at Brookdale Hospital, while being transported to PSA-2, while at PSA-2 as well as at Central Booking in the County of Kings, City and State of New York, while going for his arraignment, until he was released from Central Booking/ Criminal Court on 7/6/17 and for approximately 4 months until the charges were dismissed

against him on October 5th 2017 in the DV2 Part of the Criminal Court of the City of New York County of Kings

TWENTY-FIFTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson, and Other P.O.s herein Named John Does on or about the 5th day of July 2017 amounted to wanton, reckless outrageous conduct.

TWENTY-SIXTH: That at the time of the intentional infliction of emotional distress the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson and other P.O.s herein named John Doe were acting within the scope of their employment.

TWENTY-SEVENTH: That by reason of the foregoing occurrence, the plaintiff, KARIM RICHARDSON was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to a sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A FOURTH AND SEPARATE AND DISTINCT CAUSE
OF ACTION FOR A VIOLATION OF HIS CIVIL RIGHTS ON
BEHALF OF PLAINTIFF KARIM RICHARDON**

TWENTY-EIGHT: That plaintiff, KARIM RICHARDSON repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**TWENTY-SEVENTH**" inclusive, with the same force and effect as if fully and at length herein set forth.

TWENTY-NINTH: That on or about the 5th of July 2017, defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson, and Other P.O.s herein named John Does were working within the scope of their employment, when they deprived the plaintiff of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including, 42 U.S.C. SECS. 1981, 1983, 1985, and 28. U.S.C. 1343.

THIRTIETH: That afore said actions of the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants. P.O. Thompson, and Other P.O.s herein named John Does herein amounted to wanton, reckless and outrageous conduct.

THIRTY-FIRST: That the injuries sustained by the plaintiff herein were caused due to the negligence of the defendants, The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson and Other P.O.s herein named John Does with no actions on his part contributing in any way thereto.

THIRTY-SECOND: That at the time of the violation of his civil rights under the

Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including, 42 U.S.C. SECS. 1981, 1983, 1985, and 28. U.S.C. 1343, the defendants, their agents, servants and/or employees were acting within the scope of their employment.

THIRTY-THIRD: That by reason of the foregoing occurrence, the plaintiff, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A FIFTH AND SEPARATE AND DISTINCT CAUSE OF
ACTION FOR NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF PLAINTIFF KARIM RICHARDSON**

THIRTY-FOURTH: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**THIRTY-THIRD**" inclusive, with the same force and effect as if fully and at length herein set forth.

THIRTY-FIFTH: That on or about , the defendants, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, P.O. Thompson and Other P.O.s herein named John Does, while in the scope of their employment did negligently, inflict extreme emotional distress on the plaintiff, at the situs of the arrest, while waiting in an NYPD Van for an Ambulance, at Brookdale Hospital, while being transported to PSA-2, while at PSA-2 as well as Central Booking in the County, City and State

of New York while going for his arraignment, until he was released from Central Booking/ Criminal Court on 7/6/17 and for approximately 4 months until the charges were dismissed against him on 10/5/17 in the DV2 Part of Criminal Court of the City of New York, County of Kings.

THIRTY-SIXTH: That due to the wanton, reckless and malicious actions of the defendants The City, and The Police Department, as well as their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson and Other P.O.s herein named John Does, while in the scope of their employment did negligently, inflict extreme emotional distress on the plaintiff, at the situs of the arrest, while waiting in an NYPD Van for an Ambulance, at Brookdale Hospital, while being transported to PSA-2, while at PSA-2 as well as Central Booking in the County of kings, City and State of New York while going for his arraignment, until he was released from Central Booking/ Criminal Court on 7/6/17 and for approximately 4 months until the charges were dismissed against him on 10/5/17 in the DV2 Part of Criminal Court of the City of New York County of Kings.

THIRTY-SEVENTH: That the aforesaid actions of the defendants, The City, The Police Department, and their agents servants and/ or employees including but not limited to the defendants, P.O. Thompson, and Other P.Os herein named John Does on July 5th 2017 amounted to wanton, reckless outrageous conduct.

THIRTY-EIGHTH: That on the 5th of July 2017 The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, P.O. Thompson, and Other P.O.s herein named John

Does, were working within the scope of their employment, when they negligently caused the plaintiff to endure severe emotional distress.

THIRTY-NINTH: That the injuries sustained by the plaintiff herein were caused due to the negligence of the defendants, their agents, servants and/or employees with no actions on her part contributing in any way thereto.

FORTIETH: That the defendants, their agents, servants and/or employees actions herein amounted to wanton, reckless and outrageous conduct.

FORTY-FIRST: That at the time of the negligent infliction of emotional distress the defendants, their agents, servants and/or employees were acting within the scope of their employment.

FORTY-SECOND: That by reason of the foregoing occurrence, the plaintiff, was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A SIXTH AND SEPARATE AND DISTINCT CAUSE OF ACTION
FOR MALICIOUS PROSECUTION ON BEHALF OF PLAINTIFF, KARIM
RICHARDSON**

FORTY-THIRD: That plaintiff, repeats, reiterates and re-alleges each and every allegation of the Complaint numbered "**FIRST**" through "**FORTY**

SECOND" inclusive, with the same force and effect as if fully and at length herein set forth.

FORTY-FOURTH: On or about the 5TH day of July 2017, The City and The Police Department as well as their agents, servants and/or employees, including but not limited to defendants, P.O. Thompson, and Other P.O.s herein named John Does, individually, and severally, maliciously and without probable cause, executed and swore to accusatory instruments: charging plaintiff with the following: **PL 120.00 01, 120.15, 240.26. 00, and 205.30.00**

FORTY-FIFTH: Plaintiff, KARIM RICHARDSON was thereafter compelled to appear in the Criminal Court of the City of New York, County of New York, to defend himself against the above-described malicious, baseless, and ill founded charges of **PL 120.00 01, 120.15, 240.26. 00, and 205.30.00**

FORTY-SIXTH: That approximately 4 months later the aforesaid charges were dismissed on 10/5/17 before Hon. Montalbano in DV2 part of the Criminal Court of the City of New York, County of Kings, City and State of New York.

FORTY-SEVENTH: That by reason of the foregoing, the plaintiff, has been deprived of his liberty, subjected to ridicule, scorn and derision, damaged in his good name and reputation and subjected him to great humiliation, mental and physical distress. That as a result thereof the plaintiff has suffered compensatory damages having a present value that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction of this matter.

**FOR A SEVENTH SEPARATE AND DISTINCT
CAUSE OF ACTION FOR ASSAULT ON BEHALF OF THE PLAINTIFF
KARIM RICHARDSON**

FORTY-EIGHTH: That the Plaintiff, KARIM RICHARDSON repeats, reiterates and realleges each and every allegation of the Complaint numbered "**FIRST**" through "**FORTY-SEVENTH**" inclusive, with the same force and effect as if fully and at length herein set forth

FORTY-NINTH: That on 5TH of July 2017 the defendants, their agents, servants and/or employees of the defendants, P.O. Thompson and Other P.O.s herein named John Does who were at the situs of the arrest did willfully and intentionally assault, strike, push, grab, and Taser the plaintiff, KARIM RICHARDSON without any provocation on the part of said plaintiff.

FIFTIETH: That at the time of the assault, the defendants, their agents, servants and/ or employees, were acting within the scope of their employment.

FIFTY-SECOND: That by reason of the foregoing occurrence, the plaintiff, KARIM RICHARDSON was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and he sustained other and further expenses all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

**FOR A EIGHTH AND SEPARATE AND DISTINCT ACTION
FOR EXCESSIVE FORCE, VARIOUS POS HEREIN NAMED
JOHN DOES ON BEHALF OF PLAINTIFF KARIM RICHARDSON**

FIFTY-THIRD: That plaintiff, repeats, reiterates and re-alleges each and

every allegation of the Complaint numbered "**FIRST**" through "**FIFTY-SECOND**" inclusive, with the same force and effect as if fully and at length herein set forth.

FIFTY-FOURTH: That the defendants, P.O. Thompson, and OTHER POS HEREIN NAMED JOHN DOES, used excessive force against in violation of the 4th 14th and 8th Amendments when they tasered the plaintiff, KARIM RICHARDSON, who had his right hand behind him and in a handcuff, laughed at him when he fell to the floor and physically restrained him by placing their knee(s) on the back of his neck despite already having already been tasered, on the ground and with one handcuff on his right hand.

FIFTY-FIFTH: There was no legal justification for defendants, P.O. Thompson and the OTHER POS herein named JOHN DOES actions.

FIFTY-SIXTH: Defendants, P.O. Thompson, and OTHER POS herein named JOHN DOES actions were objectively unreasonable.

FIFTY-SEVENTH: The actions of the Defendants, OTHER POS herein named JOHN DOES amounted to deliberate indifference to the rights of the plaintiff to be free of excessive force, unreasonable seizures under the Fourth and Fourteenth Amendments to the Constitutions of the United States as well as the applicable parts of The Constitution of the State of New York.

FIFTY-EIGHTH: The actions of the defendants, P.O. Thompson, and OTHER POS herein named JOHN DOES amounts to unnecessary and wanton infliction of pain, and arises under the Eighth Amendment to the Constitutions of the United States and the applicable parts of The Constitution of the State of New York.

FIFTY-NINTH: That by reason of the foregoing excessive force, the plaintiff was caused to sustain serious, severe and permanent injuries; was compelled to obtain hospital and medical care, aid and attention; was confined to his bed and home; was unable to attend to his duties and was caused to sustain other and further expenses, all to his damage in a sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages.

WHEREFORE, the plaintiff demands judgment against the defendants on the First, Second, Third, Fourth, Fifth, Sixth Seventh, and Eighth Causes of Action in the sum that exceeds the jurisdictional limits of all lower courts and that said conduct amounted to wanton and reckless behavior for which plaintiff is entitled to sum that exceeds the jurisdictional limits of all lower courts for punitive damages together with the costs and disbursements of this action.

Dated: New York, New York
June 5, 2018

Yours, etc.

HARNICK & HARNICK, P.C.



THOMAS HARNICK
Attorneys for Plaintiff
305 Broadway, Suite 602
New York, New York 10007
(212) 962-5065

VERIFICATION

STATE OF NEW YORK)

ss:

COUNTY OF NEW YORK)

The undersigned, **THOMAS HARNICK**, an attorney admitted to practice in the Courts of New York State, shows:

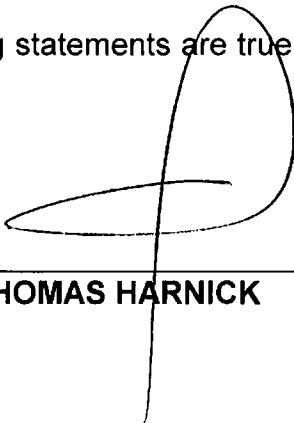
That he is a Partner in the law firm of **HARNICK AND HARNICK, P.C.** attorneys of record for the plaintiff, and personally in charge of the within action: that he has read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to his own knowledge, except as to those matters therein stated to be alleged on information and belief, and as to those matters, he believes the same to be true.

The grounds of deponent's belief as to all matters not stated upon his knowledge are as follows: investigations which he has caused to be made concerning the subject matter of this action, and statements of witnesses made herein.

Deponent further says that the reason this verification is made by deponent and not by the plaintiff is because the plaintiff does not reside within the county where your deponent has his offices.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury:

Dated: New York, New York
June 5, 2018



THOMAS HARNICK

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

INDEX NO:

KARIM RICHARDSON,

Plaintiff,

- against -

**THE CITY OF NEW YORK, THE POLICE DEPARTMENT
OF THE CITY OF NEW YORK , P.O. DAVID THOMPSON,
SHIELD NO: 19571, AND OTHER P.O'S HEREIN NAMED
JOHN DOES,**

Defendants.

SUMMONS, COMPLAINT AND ATTORNEY VERIFICATION

**HARNICK & HARNICK, P.C.
Attorneys for Plaintiff
305 Broadway, Suite 602
New York, New York 10007
(212) 962-5065**